



**THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CWP No.18820 of 2026
Date of Decision: 05.06.2026**

Yadwinder Kumar Sharma

..... Petitioner

Versus

State Election Commission, Punjab and others

..... Respondents

**CORAM :HON'BLE MR. JUSTICE RAJESH BHARDWAJ
HON'BLE MR. JUSTICE RAMESH CHANDER DIMRI**

Present: Mr. Manpreet Singh Bhatti, Advocate
for the petitioner.

Mr. Ferry Sofat, Addl.A.G., Punjab.

Ms. Deepinder Kaur, Advocate and
Mr. Raminder Singh, Advocate
for respondent No.5.

RAJESH BHARDWAJ, J. (ORAL)

1. Present petition has been filed praying for directing the preservation and for keeping intact the Ballot Papers (including those declared as invalid/rejected by the Returning Officer or Assistant Returning Officer, Zirakpur) and entire election record pertaining to Ward No.19, Municipal Council, Zirakpur, whose result was declared on 29.05.2026 and preservation of videography with regard to the counting of votes. Further prayer has been made for staying the oath taking ceremony and oath functions till the recounting of votes as the certificates dated 29.05.2026 issued by the Returning Officer, Zirakpur



clearly shows that the petitioner had secured more votes, i.e. 853 and the Ruling APP candidate had secured lesser votes, i.e. 830 still AAP candidate has declared illegal winner and to direct the State Election Commission, Punjab for not issuing the notification with regard to winning candidate, till the recounting of votes.

2. After arguing for some time, learned counsel for the petitioner prays for withdrawal of the present petition with liberty to the petitioner to avail the alternative remedies as available to him in accordance with law.

3. Allowed to do so.

4. Dismissed as withdrawn with liberty aforesaid.

(RAJESH BHARDWAJ)
JUDGE

05.06.2026

(RAMESH CHANDER DIMRI)
JUDGE

<i>rittu</i>	Whether speaking/reasoned	:	Yes/No
	Whether reportable	:	Yes/No